

Sole Source Justification Under the Authority of the FAR 13.5 Simplified Procedures for Certain Commercial Items 41 U.S.C. 1901

Justification for Other Than Full and Open Competition FAR 13.501

Authority: (41 U.S.C. 1901)	
Project/Program Name: Seacraft Diver Propulsion Vehicle (DPV) Equipment, Parts, Training & Maintenance Component/PEO/Other: COMNAVSPECWARCOM Estimated Contract Cost (including options): \$750,000.00 Type: (Individual ☒ or Class ☐)	JA No. 25-4038
1. Agency and Contracting Activity: (FAR 6.303-2(b)(1))	
Agency: USSOCOM Contracting Activity: COMNAVSPECWARCOM 2000 Trident Way, Bldg. 624 San Diego CA 92115-5599	
2. Description of Action: (FAR 6.303-2(b)(2))	
Approval is requested for a new five-year Indefinite Delivery Indefinite Quantity (IDIQ) contract with Firm Fixed Priced (FFP) line items on a sole source basis to DPV-Tech, Inc. (CAGE: 8E9X5) for Seacraft Diver Propulsion Vehicles (DPV) equipment, parts, training, and maintenance. The contract will be funded at the Task Order level with Operations and Maintenance (O&M) funding applicable to the fiscal year in which orders are issued.	
3. Description of Supplies/Services: (FAR 6.303-2(b)(3))	

JA No. 25-4038

Seacraft DPV equipment, parts, training, and maintenance in support of combat diving operations and training.

4. Authority Cited: (FAR 6.303-2(b)(4))

This sole source acquisition is being conducted under the authority of the simplified acquisition procedures for certain commercial items at 41 U.S.C. 1901, as implemented by FAR 13.501(a).

5. Reason for Authority Cited: (FAR 6.303-2(b)(5))

The Seacraft diver propulsion system was developed with the SOF Combat Diving Program Office to support the validated Special Operations Rapid Requirements (SORRD) Documents for Rapid Prototyping and Rapid Fielding of Combat Diver Collective and Individual Propulsion Systems. DPV Tech, Inc. provided the initial systems and all subsequent support and equipment.

In order to sustain system life and minimize craft downtime, it is critical that DPV Tech, Inc. provide the required equipment, parts, training, and maintenance utilizing certified personnel and parts to ensure the safety of operators and maintainers. The introduction of any unauthorized parts or service providers poses unacceptable risk to the equipment and personnel. DPV Tech, Inc. is the sole distributor and authorized service point in the United States for this SOF Peculiar military variant of Seacraft DPVs.

6. Efforts/Actions to Increase Competition: (FAR 6.303-2(b)(6))

☒ A presolicitation notice will be publicized as required by FAR 5.2.

It is not practical to purchase data rights for these systems. Additionally, even if the Government owned the data rights, it would still require DPV Tech, Inc. support for their unique technical expertise in maintenance, repair and training.

7. Market Research: (FAR 6.303-2(b)(8))

The Government conducted market research which consisted of internet searches, contact with industry and prior procurement history. DPV Tech, Inc. is the only authorized U.S. retailer for the Military variants.

Procuring a new system would result in significant duplication of costs unlikely to be recovered through competition. Doing so would waste government funds before the planned life cycle of existing systems and cause unacceptable operational disruptions. When it becomes time to plan for replacement of the DPVs as the systems reach the end of their life cycle, the Government will consider ways to remove any barriers in the future requirements and thereby maximize competition.

The Technical Industrial Liaison Office (TILO) database was reviewed and no contracts for similar supplies were found.

8. Interested Sources: (FAR 6.303-2(b)(10)&(11))

DPV-Tech, Inc. (CAGE: 8E9X5)
214 Roth Rd.
Warren, Vermont 05674

9. Other Authorities/Factors: (FAR 6.303-2(b)(9))

None.

10. Technical and Requirements Certification:

I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief:

NAME: [REDACTED] TITLE: COR

SIGNAT [REDACTED] DATE: 5/7/25

11. Fair and Reasonable Cost Determination: (FAR 6.303-2(b)(7))

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based on analysis conducted per FAR 13.106 as supplemented by FAR 15.4.

CONTRACTING OFFICER SIGNATURE IN SECTION 12 BELOW ALSO SERVES AS THE PRICE FAIR AND REASONABLENESS DETERMINATION IN THIS SECTION.

12. Contracting Officer Certification:

I hereby certify that this Justification is complete and accurate to the best of my knowledge and belief.

NAME: Kelly L. McNeill TITLE: Contracting Officer

SIGNATURE: [REDACTED] DATE: 7 May 2025